

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

12. KRYSTAL CADWALLADER V. JOSEPH MECREDY

25FL0641

Petitioner filed a Request for Order (RFO) on January 9, 2026, seeking child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 6, 2026, and a review hearing on April 2, 2026. There is no Proof of Service showing Respondent was properly served.

Nevertheless, both parties appeared at CCRC and were able to reach agreements on all matters, except on where Respondent's parenting time will take place. A report with the parties' agreements as well as a recommendation for location of Respondent's parenting time was filed with the court on February 19, 2026. Copies were mailed to the parties on February 23rd.

The court finds good cause to proceed despite the lack of proper service as Respondent fully participated in CCRC and is aware of the requests being made by Petitioner. The court had read and considered the February 19th CCRC report. The court finds the agreements of the parties to be in the best interests of the minor. The court however, does not find the recommendation that Respondent's parenting time not take place at the transitional house to be in the minor's best interest. The court disagrees with the CCRC counselor's assessment of the transitional house. As such, Respondent's parenting time may take place at the transitional home, if permitted by the program.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: THE COURT FINDS GOOD CAUSE TO PROCEED DESPITE THE LACK OF PROPER SERVICE AS RESPONDENT FULLY PARTICIPATED IN CCRC AND IS AWARE OF THE REQUESTS BEING MADE BY PETITIONER. THE COURT HAD READ AND CONSIDERED THE FEBRUARY 19TH CCRC REPORT. THE COURT FINDS THE AGREEMENTS OF THE PARTIES TO BE IN THE BEST INTERESTS OF THE MINOR. THE COURT HOWEVER, DOES NOT FIND THE RECOMMENDATION THAT RESPONDENT'S PARENTING TIME NOT TAKE PLACE AT THE TRANSITIONAL HOUSE TO BE IN THE MINOR'S BEST INTEREST. AS SUCH, RESPONDENT'S PARENTING TIME MAY TAKE PLACE AT THE TRANSITIONAL HOME, IF PERMITTED BY THE PROGRAM. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION

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OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.